

24STCV24052 24STCV24052

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 24STCV24052 Hearing Date: June 25, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

MARGARET

OJARA,

Plaintiff,

v.

COSMAS OJARA,

et. al,

Defendants.

Case No:

24STCV24052

Hearing Date: June 25, 2026

Calendar Number: 8

Cross-Complainants

Ling Wang and Chunyan He move to substitute Chicago Title Insurance Company as the Cross-Complainant.

Cross-Complainants'

motion is GRANTED.

Background

This is an

action for quiet title.

On September 17,

2024, Plaintiff Margaret Ojara ("Plaintiff") filed a Complaint against

Defendants Cosmas Ojara ("Cosmas"), Ling Wang ("Wang"), and Chunyan He

("He"), alleging causes of action for (1) Rescission of Contract; (2)

Cancellation of Recorded Instrument; (3) Quiet Title; (4) Intentional

Infliction of Emotional Distress; and (5) Declaratory Relief.

Plaintiff

alleges that in 2011, Plaintiff and Cosmas purchased 5015 West Boulevard,

Los Angeles CA 90043 (the "Property") and have held ownership of the Property

as "husband and wife, as community property with the right of

survivorship."

On or about July

19, 2021, Plaintiff and Cosmas refinanced the Property,

and executed a new first position Deed of Trust from Loan America that

secured a Note for \$540,000.

Plaintiff

alleges that on or about October 31, 2023, without Plaintiff's knowledge or

consent, Cosmas and an unknown third-party DOE Defendant

impersonating Plaintiff wrongfully clouded title to the Property by executing a

fraudulent security interest on the property in the form of a Promissory Note

for \$150,000 and a fraudulent second position Deed of Trust.

Plaintiff also

alleges that on June 11, 2024, Cosmas and an unknown, third-party DOE

Defendant, who fraudulently represented herself as "Margaret Ojara,"

executed numerous loan application documents as Margaret Ojara.

Plaintiff also

alleges that on or about June 13, 2024, without Plaintiff's knowledge and

consent, Cosmas and an unknown Doe Defendant fraudulently obtained a

12-month, interest-only, loan for \$300,000 at 10% interest and a balloon

payment of \$300,000 due on July 1, 2025, from Defendants Wang and He, as

lenders. The

loan was secured by the property.

On March 14,

2025, Defendants/Cross-Complainants Wang and He ("Cross-Complainants") filed a

Cross-Complaint against Cosmas and Plaintiff, alleging causes of action for (1)

Quiet Title; (2) Equitable Subrogation; and (3) Declaratory Relief, to confirm

their respective rights and interests in the property.

On April 13, 2026, Cross-Complainants

filed this motion to substitute Chicago Title Insurance Company as the

Cross-Complainant. No opposition has been filed.

Legal Standard

Code of Civil Procedure section 368.5 states "[a]n action or

proceeding does not abate by the transfer of an interest in the action

or proceeding or by any other transfer of any interest.¿ The action

or proceeding may be continued in the name of the original party, or

the court may allow the person to whom the transfer is made to be substituted

in the action or proceeding."¿ The substitution of a party pursuant

to this section is within the trial court's discretion.¿ (Hearn Pacific

Corp. v. Second Generation Roofing, Inc.¿(2016) 247 Cal.App.4th 117,

133-134.)¿

If during the course of the lawsuit, plaintiff or

defendant transfers his or her interest therein to another, the court may allow the transferee to be substituted as a party to the action, or the action may be continued in the name of the original party. (CCP § 368.5; see *Casey v. Overhead Door Corp.* (1999) 74 Cal.App.4th 112, 121 (disapproved on other grounds by *Jimenez v. Sup.Ct. (T.M. Cobb Co.)* (2002) 29 Cal.4th 473.)) The transferee has the option either to appear as a party of record or to allow the action to continue in the name of the transferor (and any judgment rendered accordingly). (*Luster v. Collins* (1993) 15 Cal.App.4th 1338, 1345.)

Discussion

Chicago Title Insurance Company seeks to be substituted as the real-party-in-interest as Cross-Complainant in this action, in lieu of Cross-Complainants Wang and He. On November 14, 2025, Chicago Title Insurance Company, pursuant to the terms of a Lender's Policy of Title Insurance, paid the Insureds Wang and He a sum total of \$345,666.62. As a result, Wang and He executed an Allonge to the Secured Note to Chicago Title Insurance Company, without recourse, and an Assignment of Deed of Trust in favor of Chicago Title Insurance Company which was recorded in the Official Records of Los Angeles County as Document No. 20250841640 on November 24, 2025.

(Thai Decl., ¶ 11; Exhs. D and E.) As a result, Cross-Complainants argue that

Chicago Title Insurance Company, as assignee, should be substituted for

Cross-Complainants as the Cross-Complainant in this action in order to permit

recovery of the Loss Payment and incurred fees and costs from Cross-Defendants.

The Court exercises its discretion to

substitute the transferee as the Cross-Complainant. The unopposed motion is

granted.